TCD 009/2020 Five Real Estate Development LLC v Reem Emirates Aluminium LLC

AUGUST 30, 2023 TECHNOLOGY AND CONSTRUCTION DIVISION - ORDERS

Claim No. TCD 009/2020

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

FIVE REAL ESTATE DEVELOPMENT LLC

Claimant

and

REEM EMIRATES ALUMINIUM LLC

Defendant

FINAL COSTS CERTIFICATE OF THE REGISTRAR AYESHA BIN KALBAN

UPON the Defendant's Notices of Commencement of Assessment of Bill of Costs dated 22 and 23 June 2023 (the "Notices of Commencement")

AND UPON the Claimant's points of dispute dated 14 July 2023 filed in response to the Notices of Commencement (the "Points of Dispute")

AND UPON the Defendant's reply to the Points of Dispute dated 31 July 2023 (the "Reply to the Points of Dispute")

AND PURSUANT TO Part 40 of the Rules of the DIFC Courts ("RDC")

IT IS HEREBY ORDERED THAT:

1. The following sums are payable by the Claimant to the Defendant:

(a) **AED 2,895,346.08** in respect of the Defendant's costs in the course of these proceedings including the costs assessment proceedings; and

(b) **AED 217,150.95** in respect of the fee paid by the Defendant for commencement of the costs assessment proceedings.

2. The Claimant shall pay the Defendant the sums ordered in paragraph 1 of this Costs Certificate within 21 days from the date of the Costs Certificate.

Issued by:

Delvin Sumo

Assistant Registrar

Date of issue: 30 August 2023

At: 12pm